

Carnelian Maintenance Corporation

Parking Rules & Enforcement Policy

Ensuring Safety, Accessibility, and Community Standards

Introduction

To promote safety, accessibility, and the overall quality of life in the Carnelian HOA community, these parking rules apply to all homeowners, tenants, residents, and guests. All streets within the community are private and subject to the following regulations. The HOA authorizes towing to maintain safety, emergency access, and community order. All towing will be performed by an HOA-authorized towing company in compliance with California Vehicle Code §22658.

1. Homeowner Responsibility

- Homeowners are responsible for ensuring that their household members, tenants, and guests comply with all parking regulations.
- Any violations by household members, tenants, or guests may result in warnings, fines, or towing, with all consequences and costs the responsibility of the homeowner.

2. Permitted Parking Locations

- Driveways & Garages:
 - Residents shall utilize available garage and driveway parking spaces as their primary parking locations. Vehicles owned, operated, or regularly used by residents must be parked in available garage and driveway spaces before utilizing on-street parking.
 - Garage spaces are intended for vehicle parking and should be maintained in a manner that allows for the parking of operable vehicles. Residents are expected to make reasonable use of all available on-site parking spaces within their property lot prior to parking on community streets.
- Street Parking:
 - Street parking is permitted only when all available garage and driveway parking spaces associated with the residence are occupied or otherwise unavailable for vehicle parking, and provided that the vehicle:
 - Does not block or impede access to driveways, fire hydrants, mailboxes, utility equipment, or emergency vehicle access routes;

- Does not obstruct traffic flow or create a safety hazard;
- Is legally registered, insured, and in operational condition; and
- Is parked parallel to and within a reasonable distance of the curb, in accordance with applicable laws.

3. Prohibited Parking Areas

- On sidewalks
- On lawns or landscaped areas
- In accordance with fire code, parking is prohibited near fire hydrants and along any red-painted curbs or red-marked sidewalks.
- Obstructions & Double Parking: Parking that blocks or obstructs neighbors' driveways, mailboxes, or trash bins is prohibited. Double parking is also not permitted.
- In intersections or pedestrian corners
- In fire lanes
- In any location marked "No Parking"

Vehicles that create safety hazards or block access may be towed immediately at the owner's expense. See document, Enforcement policy.

4. Street Cleaning Enforcement

- Parking must comply with all posted street sweeping schedules and signage.
- Vehicles parked in violation of street cleaning restrictions may be ticketed or towed.

5. Guest Parking

- Guest parking (Green curb section) areas are reserved exclusively for visitors.
- Residents must use their driveway or permitted street parking before utilizing guest parking spaces.
- Guest spaces must be used respectfully so that all visitors have fair access.
- Vehicles parked in guest spaces by residents or for extended periods may be subject to warning, citation, or towing.
- Street Parking Duration: Vehicles parked on the street must be moved periodically and may not be left in the same location for more than 72 hours.

6. Vehicle Requirements

- All vehicles parked within the community must be:
 - Currently state-registered valid license plates and up-to-date tags
 - Operational and in good working condition

- Actively in use and not abandoned or stored on community streets
- Maintained in a condition that does not result in leaking fluids (oil, coolant, etc.)

The following vehicles are not permitted to park overnight on community streets:

- Commercial vehicles
- RVs or motorhomes
- Boats or trailers
- Campers
- Limousines
- Oversized work trucks

Temporary service vehicles or moving trucks may park temporarily while actively servicing a residence.

7. Vehicle Repairs

- Major vehicle repairs are not allowed on streets or in common areas.
- Emergency repairs may only be performed if necessary to move the vehicle.

8. Abandoned, Inoperable, and Unregistered Vehicles

- No vehicle that is abandoned, inoperable, dismantled, unregistered, expired in registration, or otherwise incapable of lawful operation on public roadways shall be parked, stored, or maintained on Association property or community streets.
- A vehicle may be deemed abandoned if it remains parked in the same location for more than seventy-two (72) consecutive hours without being moved, appears neglected, or otherwise indicates a lack of regular use, subject to applicable laws.
- Indicators of an inoperable vehicle may include, but are not limited to, flat tires, missing or damaged components, broken windows, fluid leaks, expired registration, or any condition that prevents the vehicle from being safely and legally operated.
- Vehicles determined to be abandoned, inoperable, or unregistered may be subject to violation notices, fines, towing, and other enforcement actions in accordance with the Association's Enforcement Actions Policy, governing documents, and applicable law.
- Homeowners, residents, tenants, and their guests shall not use community streets or common area parking spaces for the long-term storage or regular parking of vehicles owned by non-residents. No resident or homeowner shall permit, arrange for, or facilitate the parking of vehicles belonging to individuals who do not reside in

or are not legitimately visiting the community for the purpose of circumventing the Association's parking regulations.

- The Association reserves the right to document violations through photographs, inspections, or other reasonable means and may authorize the removal of such vehicles after providing any notice required by law.

9. Enforcement Policy

- Parking rules are enforced by the HOA and its authorized security patrol and towing provider.
- Enforcement actions:
 - 1st Violation – citation notice
 - 2nd Violation – HOA fine issued to homeowner
 - 3rd Violation – Vehicle subject to towing at owner's expense
- To avoid potential challenges such as Vehicles creating safety hazards such as blocking fire lanes or blocking emergency access or hazardous obstructions, may be towed immediately without warning.

10. Tow-Away Violations

- Vehicles may be towed without prior notice if they are:
 - Blocking neighbors' driveways
 - Blocking emergency vehicle access and fire hydrants
 - Parked in a fire lane
 - Parked in violation of posted street cleaning restrictions
 - Parked in restricted areas or designated no-parking zones
 - Abandoned or inoperable

All towing is performed by an HOA-authorized towing company at the vehicle owner's expense.

11. Compliance

- These parking rules apply to all residents, tenants, guests, and service vehicles within the Carnelian HOA community.
- Failure to comply may result in fines, towing, or additional enforcement actions as described in the HOA governing documents.

12. Effective Date

These parking rules become effective on (TBD). Please retain this document for reference and share with all household members, tenants, and guests.

Contact Information

For questions or to report violations, contact the Carnelian HOA Management Office at

- <https://portal.optimumpm.com/community/new-request>
- 714.508.9070 EXT: 284